



CHAPTER cxi.

An Act to make further provision with respect to the water electricity and omnibus undertakings of the mayor aldermen and burgesses of the borough of Lancaster and for other purposes.

A.D. 1930.

[10th July 1930.]

WHEREAS the mayor aldermen and burgesses of the borough of Lancaster (in this Act called "the Corporation") are the owners of the waterworks for supplying and are supplying water within their borough and the neighbourhood thereof and powers in regard to their waterworks and to such supply are conferred upon the Corporation by the Lancaster Corporation Acts 1795-6 to 1920 :

And whereas under the said Acts the Corporation are entitled to impound take use divert and appropriate for the purposes of their water undertaking the waters of streams springs and waters within the drainage area of the river Wyre above the dam of the Abbeystead reservoir and tributary to the said river :

And whereas the supply of water from the waterworks of the Corporation is inadequate to meet the growing demands of the areas within which the Corporation are at present supplying water :

And whereas by the Lancaster Corporation Water Act 1920 the Corporation were prohibited from intercepting the waters of the Damas Gill by means of the Lower Damas Gill reservoir or from taking waters of the said gill for any purpose :

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And whereas the Lune Board of Conservators and certain riparian owners and others who are or claim to be entitled to use the waters of the said Damas Gill have agreed that subject to certain conditions the effect of which is embodied in this Act the Corporation may take and use for the purposes of their water undertaking the waters derived from the Damas Gill :

And whereas it is expedient to repeal the prohibition above referred to which is contained in the said Act of 1920 and to empower the Corporation subject to the provisions of this Act to take and use the waters of the Damas Gill and it is also expedient to confirm and sanction the construction of the works referred to in this Act which have been constructed by the Corporation for the purposes of enabling them to take and use such waters :

And whereas the Corporation are the owners of the undertaking whereby the borough is supplied with electricity and it is expedient to make further provision with regard to the electricity undertaking of the Corporation :

And whereas by the Lancaster Order 1916 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 6) Act 1916 the Corporation are empowered to provide motor omnibuses and to run the same within the borough and it is expedient to confer further powers upon the Corporation with reference to the running of omnibuses as is provided in this Act :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

The purchase of lands and easements and rights in connection with lands and water (including any moneys paid or payable by the Corporation under the section of this Act of which the marginal note is " Pay- ment of compensation ")	£
	1,500
The construction of the waterworks sanctioned and confirmed by this Act	3,300

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—

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Lancaster Corporation Act 1930 and the Lancaster Corporation Acts 1795-6 to 1920 and this Act may be cited as the Lancaster Corporation Acts 1795-6 to 1930.

Short and
collective
titles.

2. This Act is divided into Parts as follows (that is to say) :—

Division
of Act into
Parts.

Part I.—Preliminary.

Part II.—Water.

Part III.—Electricity.

Part IV.—Omnibuses.

Part V.—Finance.

Part VI.—Miscellaneous.

3. In this Act unless the subject or context otherwise requires—

Interpre-
tation.

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Lancaster ;

“ The borough ” means the borough of Lancaster ;

“ The council ” means the council of the borough ;

“ The town clerk ” and “ the treasurer ” mean respectively the town clerk and the treasurer of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

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- “ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;
- “ The Act of 1900 ” “ the Act of 1918 ” and “ the Act of 1920 ” mean respectively the Lancaster Corporation Act 1900 the Lancaster Corporation Act 1918 and the Lancaster Corporation Water Act 1920 ;
- “ The water undertaking ” means the water undertaking of the Corporation for the time being authorised ;
- “ The Wyre riparian owners ” means the owners of the lands forming both banks of the river Wyre between the point at which the Damas Gill joins that river and a point opposite to the vicarage of St. Michael’s Church in the parish of Upper Rawcliffe with Tarnacre whose names are set forth in Part II of the schedule to this Act or (as the case may be) the successors in title of such owners ;
- “ The water limits ” means the limits for the time being of the Corporation for the supply of water ;
- “ The electricity undertaking ” means the electricity undertaking of the Corporation for the time being authorised ;
- “ The electricity limits ” means the limits for the time being of the Corporation for the supply of electricity ;
- “ The Minister ” means the Minister of Health ;
- “ Daily penalty ” means a penalty for every day on which an offence is continued by a person after conviction ;
- “ Statutory security ” “ statutory borrowing power ” and “ revenues of the Corporation ” have the meanings respectively assigned to them by section 4 (Interpretation) of the Act of 1918.

Incorporation of Acts.

4. The following Acts and Parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

- (a) The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 (relating

to the sale of superfluous lands) and except the provisions with respect to the taking of lands otherwise than by agreement;

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(b) The Waterworks Clauses Act 1847 except—

(i) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(ii) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(iii) section 83 (with respect to the yearly receipts and expenditure of the undertakers); and

(c) The Waterworks Clauses Act 1863.

PART II.

WATER.

5.—(1) The construction by the Corporation of the works hereinafter described is hereby sanctioned and confirmed and subject to the provisions of this Act the Corporation may maintain and from time to time repair renew alter enlarge extend or discontinue those works and may use and employ the same for the purposes of taking intercepting and impounding water and may continue to take intercept and impound any water which can be taken intercepted or impounded by such works The works hereinbefore referred to are situate in the township of Quernmore in the county palatine of Lancaster and are—

Power to
maintain
additional
water-
works &c.

Work No. 1 A weir (with a discharge pipe or conduit having an internal diameter of not less than six inches at the foot thereof) situate in the stream known as Damas Gill at a point 132 yards or thereabouts measured up-stream from the centre of the bridge carrying the road from Hare Appletree to the reservoir attendant's house at the Damas Gill reservoir of the Corporation across that stream;

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Work No. 2 A line or lines of pipes (with an intake from the said Damas Gill) commencing at or immediately above the said weir (Work No. 1) authorised by this Act and terminating at the said Damas Gill reservoir;

Work No. 3 A weir (with a discharge pipe or conduit having an internal diameter of not less than six inches at the foot thereof) situate in the said Damas Gill at a point 25 yards or thereabouts measured up-stream from the bridge above referred to;

Work No. 5 A weir (with a discharge pipe or conduit having an internal diameter of not less than six inches at the foot thereof) situate in the unnamed tributary of the said Damas Gill which flows through or past the house and farm known as Hare Appletree at a point on that stream 164 yards or thereabouts measured in a north-easterly direction from the most easterly corner of the said house known as Hare Appletree;

Work No. 6 A line or lines of pipes (with an intake from the said unnamed stream) commencing at or immediately above the said weir (Work No. 5) authorised by this Act and terminating by a junction with Work No. 2 authorised by this Act;

Work No. 7 A line or lines of pipes commencing by a junction with Work No. 2 authorised by this Act at a point 145 yards or thereabouts measured in a north-easterly direction from the termination of that work and terminating in the said Damas Gill at a point 25 yards or thereabouts measured in an easterly direction from the commencement of the said Work No. 7.

(2) The Corporation may upon lands acquired by them for the purposes of or in connection with the water undertaking whether under the provisions of this or any other Act make and maintain all such works and conveniences as they may consider necessary or convenient in connection with or subsidiary to the waterworks sanctioned and confirmed by this Act or the existing or authorised waterworks of the Corporation or for inspecting maintaining repairing cleansing managing working or using the same respectively :

Provided that—

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(a) nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them;

(b) any electric apparatus shall be so made maintained and used as not to cause any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General.

6. The purchase or acquisition by the Corporation of the lands and easements and rights in connection with lands and water purchased or acquired by them for the purposes of or in connection with the works referred to in subsection (1) of the section of this Act of which the marginal note is "Power to maintain additional waterworks &c." is hereby sanctioned and confirmed and the said lands easements and rights in lands and water may be held and used by the Corporation for the purposes of the water undertaking.

Confirma-
tion of
acquisition
of lands.

7. Subject to the provisions of this Act the water-works sanctioned and confirmed or authorised by this Act shall for all purposes be deemed part of the water undertaking.

Works to
form part
of under-
taking.

8.—(1) Notwithstanding anything contained in the Act of 1920 or any other enactment but subject to the provisions of this section the Corporation may collect impound take use and appropriate for the purposes of the water undertaking the waters of the Damas Gill and of the unnamed tributary of the Damas Gill which is referred to in the section of this Act of which the marginal note is "Power to maintain additional waterworks &c." :

Power to
take waters.

Provided that no such waters shall be so collected impounded taken used and appropriated by the Corporation under the provisions of this Act except—

(a) when the top water level of the pool formed by means of the weir referred to in the description of Work No. 3 authorised by this Act is not lower than the height of one inch above the highest point on the internal circumference of

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the discharge pipe or conduit referred to in that description and then only when in the opinion of the waterworks engineer of the Corporation for the time being such waters are necessary for the purposes of the water undertaking; and

(b) so long as the Corporation maintain in proper order and condition and free from obstruction the said discharge pipe or conduit.

(2) (a) In case of any neglect on the part of the Corporation to maintain in proper order and condition and free from obstruction any of the discharge pipes or conduits which are referred to in the descriptions of Works Nos. 1 3 and 5 authorised by this Act and in case of any other neglect by or in consequence of which water shall be prevented from flowing through the said discharge pipes or conduits the Corporation shall for every day on which such neglect occurs forfeit and pay to the Lune Board of Conservators and to each of the persons affected thereby (who may sue for and recover the same) the sum of five pounds Provided that the total amount so payable by the Corporation in respect of any one day shall not exceed the sum of fifty pounds in the aggregate.

(b) The sum or sums payable by the Corporation under this subsection shall be accepted in full satisfaction of all claims whatsoever of the said board of conservators and of each of the said persons in respect of the neglect of the Corporation in respect of which it is paid.

(3) The Corporation shall (so far as they are legally able so to do) at all reasonable times afford to the said board of conservators and to the Wyre riparian owners and to their duly authorised representative or representatives reasonable facilities for inspecting the works authorised by subsection (1) of the section of this Act of which the marginal note is "Power to maintain additional waterworks &c."

(4) So much of section 6 (Power to take waters of drainage area of river Wyre) of the Act of 1920 as is inconsistent with the provisions of this section is hereby repealed.

Payment
of com-
pensation.

9.—(1) The following payments by the Corporation to the parties hereinafter mentioned are hereby sanctioned and authorised and shall be made by the Corporation

in so far as they have not been made before the passing of this Act (namely) :— A.D. 1930.

- (a) To the Lune Board of Conservators the sum of two hundred and fifty pounds;
- (b) To Jane Richardson or other the owner of Garstang Mill in the parish of Garstang the sum of seventy-five pounds;
- (c) To William John Barnes or other the owner of Cleveley Mill in the parish of Cleveley the sum of four hundred and ten pounds;
- (d) To Sir Amos Nelson Baronet and James Harold Clay or other the owner of Scorton Mill in the parish of Nether Wyresdale the sum of five hundred pounds;
- (e) To the Wyresdale Anglers Limited the sum of forty pounds;
- (f) To each of the persons mentioned in Part I of the schedule to this Act or to their respective executors administrators or assigns the sum of fifteen pounds.

(2) (a) The Corporation shall also pay the following sums into an account to be opened at the Manchester and County Bank in Preston in the joint names of Albert William Wilson James Lever Rushton and John Marcus Beaumont Rea (in this section called "the trustees") (namely) :—

- (i) The sum of two hundred and forty-six pounds to be divided by the trustees amongst the Wyre riparian owners in proportion to the extent of the respective frontages of such owners to the river Wyre;
- (ii) The sum of fifty pounds to be applied towards the costs charges and expenses of the Wyre riparian owners of and in connection with the negotiations with the Corporation with regard to the Bill for this Act.

(b) The receipt of the trustees (or any two of them) shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof.

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(3) The provisions of this section shall be taken by the said board of conservators and by the said owners of Garstang Mill Cleveley Mill and Scorton Mill and by the Wyresdale Anglers Limited and by all persons mentioned in the schedule to this Act and by any persons claiming through or under any of such owners company or persons as full compensation for the value of the waters which are collected intercepted impounded diverted taken used or appropriated by the Corporation for the purposes of the water undertaking under the powers of this Act or any enactment incorporated therewith and for all damage sustained or to be sustained by such owners company or persons by reason of the exercise of the powers vested in the Corporation by this Act or by any enactment incorporated therewith and for all injurious affection to the lands or rights of such owners company or persons by the execution and maintenance of the works authorised by this Act or any enactment incorporated therewith but nothing in this subsection shall prejudice or affect any right to compensation which may be possessed by any other person under or in pursuance of the provisions of any enactment incorporated with this Act.

As to commencement and completion of Langthwaite reservoir.

10.—(1) The Corporation shall commence the construction of the Langthwaite reservoir (Work No. 8) authorised by section 16 (Power to make waterworks) of the Act of 1918 within a period of four years from the passing of this Act or within such shorter or longer period as may be determined by the Minister on the application of either the Corporation or the mayor aldermen and burgesses of the borough of Morecambe and Heysham. Provided that no such application shall be made by the mayor aldermen and burgesses of the borough of Morecambe and Heysham until after the expiration of a period of two years from the passing of this Act.

(2) When the Corporation shall have commenced the construction of the Langthwaite reservoir they shall proceed with due diligence to complete the same and shall complete such construction within a period of seven years from the date of the commencement thereof or (in the event of delay in such construction arising from circumstances over which the Corporation have no control) within such further period as may be approved by the Minister.

11. The provisions of section 35 of the Waterworks
Clauses Act 1847 shall in their application to the
Corporation be read and construed as if the one tenth
part of the expense of providing and laying down pipes
mentioned in that section were one eighth part of such
expense.

Amend-
ment of
section 35
of Water-
works
Clauses
Act 1847.

12.—(1) A rural district council any part of whose
district is within the water limits may give and enter
into any guarantee or contract for securing payment
to the Corporation of such periodical or other sum or
sums at such time or times in such manner and subject
to such stipulations as may be agreed by and between
such council and the Corporation for the purpose of
or with respect to the providing or laying down by
the Corporation of any main pipe or works for the
supply of water within any part of such district which
is within the water limits.

Guarantees
by district
councils.

(2) The giving of such guarantee and the perform-
ance of any contract in relation thereto shall be deemed
to be a purpose for which under the provisions of any
general Act relating to the powers of such council they
may incur expenditure and any such council may raise
any money which may become payable to the Corpora-
tion under this section in like manner as money may
be raised under the provisions of any such general Act.

(3) Provided that where such money is raised by
means of a rate such rate shall be or shall be deemed
to be a special rate but the provisions of this subsection
shall not affect the operation of section 56 of the Local
Government Act 1929.

13.—(1) The Corporation shall not be bound to
supply with water otherwise than by measure (a) any
building used by an occupier as a dwelling-house whereof
any part is used by the same occupier for any trade
or manufacturing purpose for which water is required
or (b) any workhouse public institution hospital asylum
(whether public or private) sanatorium club hotel
public-house inn public assembly hall or restaurant
or (c) any boarding-house capable of accommodating
twelve or more persons including the persons usually
resident therein or (d) any school not maintained by
the local education authority.

Supply of
water to
houses
partly used
for trade
&c.

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(2) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the net annual value thereof as appearing in the valuation list in force at the commencement of the quarter for which the rate accrues.

(3) The minimum half-yearly charge for a supply of water by measure to any of the premises in this section mentioned shall be one-half of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value as appearing in the said valuation list.

Charges for
hosepipes
and re-
frigerating
apparatus.

14.—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if a hosepipe or other similar apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first Any sums chargeable under this subsection shall be in addition to the rates for the time being authorised by or under this Act for the supply of water for domestic purposes and shall be paid and recoverable in all respects with and in the same manner as the said rates.

(2) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hosepipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of any such hosepipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

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(3) Where a person who takes a supply of water from the Corporation for any purpose desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall—

- (i) be taken by meter on the conditions and at the rates for the time being in force for the supply of water by meter; or
- (ii) be paid for on such other terms as may be agreed between such person and the Corporation :

Provided that if the person is only taking a supply of water from the Corporation for domestic purposes the minimum sum per quarter which may be demanded by the Corporation for the water used for or in connection with the refrigerating apparatus if taken by meter shall not exceed ten shillings.

15.—(1) Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

Special
terms for
supplies to
caravans
shacks and
huts &c.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

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For pro-
tection of
Lancaster
County
Asylum.

16. Nothing in the sections of this Act of which the marginal notes respectively are "Supply of water to houses partly used for trade &c." "Charges for hosepipes and refrigerating apparatus" and "Special terms for supplies to caravans shacks and huts &c." shall derogate from any provisions of section 39 (Supply of water to Lancaster County Asylum) of the Act of 1918 or any right of the visiting committee of the Lancaster County Asylum thereunder.

Price of
supply by
meter.

17. The charge to be made by the Corporation for a supply of water by meter shall not exceed three shillings per thousand gallons. Provided that the Corporation shall be entitled to charge a minimum sum of one pound in any quarter of the year for water supplied by meter.

Water rate
&c. may be
collected
with
general
rate.

18.—(1) Any water rate or charge payable to the Corporation may be collected together with the general rate and the same books may be used for the said water rate and charge and the general rate.

(2) The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate and water rate or charge shall be in such form as the Minister may from time to time prescribe.

(3) The Corporation may demand water rates and charges both within and beyond the borough by half-yearly instalments in advance on the first day of April and the first day of October in each year but so that the same shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively.

(4) Any person liable to the payment of water rate to the Corporation may if he thinks fit pay such rate yearly in advance.

Byelaws
for
preventing
waste &c.
of water.

19.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soilpans waterclosets baths cisterns and other apparatus (in this section referred to as

“water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

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(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) Provided that such byelaws shall not apply to any water fittings used on any premises which form part of the railway of a railway company other than premises to which the Corporation are bound under the Waterworks Clauses Act 1847 to afford a constant supply.

(4) The Corporation shall on or before the date upon which notice of any such byelaws is first given in any local newspaper in pursuance of section 184 of the Public Health Act 1875 send a copy of the byelaws to the local authority for every district in which the byelaws are intended to be in force.

(5) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation as the water rates in respect of the premises are recoverable.

20. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the waterworks engineer of the Corporation or any person duly authorised by him in writing may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder such engineer or authorised person from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds.

Extension
of power to
inspect
premises.

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—
Separate
communica-
tion pipes
may be
required.

21.—(1) The Corporation shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water:

Provided that this section shall not apply in the case of a communication pipe which at the passing of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Corporation may require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement formerly supplied with water by means of that communication pipe.

(2) If the owner of any house or part of a house occupied as a separate tenement and supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Corporation may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from the owner.

Power to
person
liable to
maintain
pipes &c.
to open
ground.

22.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 (relating to pipes to be laid by the inhabitants) of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the water limits execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

23. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation or other officer duly authorised in that behalf by the Corporation.

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—
Maintenance of
common
pipe.

24. If by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Corporation by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or (in cases where the owner of any premises satisfies the Corporation that the communication pipe is repairable by the occupier of such premises) from the occupier :

Power to
Corporation
to repair
communica-
tion pipes.

Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises and in any case where the communication pipe is repairable by the owner of such house or premises to such owner not less than twenty-four hours' notice of their intention so to enter.

25. Notwithstanding anything in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipe therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main any work which shall be necessary to connect the communication or

Corporation
to connect
communica-
tion pipes
with mains.

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Power to sell meters. **26.** The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Injuring meters &c. **27.—(1)** Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration

prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings. A.D. 1930.
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28.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Corporation. Register of meter to be prima facie evidence.

(2) Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

29. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Corporation of connecting or disconnecting meters.

30. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation. Notice of discontinuance.

31.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soilpans water closets and other fittings as are required or permitted by their regulations and may provide all materials and execute all work necessary or Power to supply water fittings.

A.D. 1930. proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

(3) Subject to the proviso to subsection (2) of this section all fittings let by the Corporation on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any premises at all times continue to be the property of and removable by the Corporation. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) Provided as follows—

- (a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);
- (b) When a demand note delivered by the Corporation to a consumer includes a sum charged by the Corporation in respect of providing such fittings or the fixing repairing or removal thereof such sum shall be clearly stated in such demand note;
- (c) The total sums expended and received by the Corporation in connection with the purposes

in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year. A.D. 1930.

32. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly. Penalty for interfering with valves &c.

33. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. Interference with valves pipes and fittings.

34. The Corporation may enter into and carry into effect agreements with any local authority company body or person supplying water under parliamentary authority for the purchase of water in bulk by the Corporation for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Corporation for the purposes of the water undertaking. Purchase of water in bulk.

PART III.

ELECTRICITY.

35. The Corporation may upon the application of the owner or occupier of any premises in the electricity limits abutting on or in process of erection in any street laid out or made and whether dedicated to public use Power to lay electric lines &c. in private streets.

A.D. 1930. or not supply such premises with electricity and may lay down take up alter relay or renew in across or along such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1928 and of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section :

Provided that nothing contained in this section shall apply to any street belonging to and forming the approach to any station or depot of a railway company nor shall the Corporation in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street.

Power to
construct
electrical
sub-stations
under
streets.

36. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1928 and of the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 the Corporation may construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use within the electricity limits sub-stations transforming stations and other works in connection with the electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient :

Provided that the Corporation shall not construct any such sub-station transforming station or work (a) in or upon any bridge carrying a street over a railway of a railway company or the approaches thereto or under any bridge carrying such a railway over a street or within ten feet of any abutment of any such bridge or (b) in any street belonging to or repairable by a railway company and forming the approach to any station or depot of such company or (c) so as to interfere with or render less convenient the access to or exit from any station or depot of a railway company constructed and maintained under statutory authority except with the consent in writing of the railway company :

Provided also that the Corporation shall not without the consent of the county council of the administrative county of the county palatine of Lancaster construct

any such sub-station transforming station or work in any road in respect of which the said county council are the highway authority or towards the maintenance and repair whereof the said county council are liable to make a payment Provided that such consent shall not be unreasonably withheld and any question which may arise as to whether or not such consent has been unreasonably withheld shall be referred to and settled by an arbitrator to be agreed upon between the parties to the dispute and failing such agreement to be appointed on the application of either party after notice to the other by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory amendment thereof shall apply to the reference.

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37.—(1) No consumer within the electricity limits to whom electricity is supplied by the Corporation for power purposes shall without the consent in writing of the Corporation use such electricity for lighting purposes or suffer it to be so used.

Use for
lighting
purposes of
electricity
supplied
for power.

Any such consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for power purposes shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as for the time being they may be charging for the supply of electricity for lighting purposes for all or any portion of the electricity which has been supplied to him for power purposes within one year previous to the date when the Corporation shall sue for any penalty as aforesaid.

Any court having jurisdiction to impose such penalty may and shall on the application of the Corporation decide upon what portion (if any) of such electricity the higher charge as aforesaid shall be payable to the Corporation.

(2) The provisions of section 18 (Power to refuse to supply electrical energy in certain cases) of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

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(3) In this section the expression " power purposes " includes all purposes to which electricity may be applied other than lighting purposes.

Provisions
as to
supply of
electricity
by agree-
ment.

38.—(1) If any consumer of electricity supplied within the electricity limits by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement. Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

(2) A consumer supplied with electricity by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required to supply energy within the meaning of section 30 (Penalty for failure to supply) of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply to the supply afforded by the Corporation under such agreement unless the provisions of that section are expressly excluded from application in any such agreement and if the Corporation fail to supply energy to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation :

Provided that the provisions of this subsection shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Contracts
for supply of
electricity
in bulk.

39.—(1) (a) The Corporation and any local authority company body or person authorised by Act of Parliament or Order confirmed by Parliament or by a Special Order under the Electricity (Supply) Act 1919 to produce or supply electricity may enter into and carry into effect contracts for the supply by the

Corporation beyond the electricity limits to any such local authority company body or person or by any such local authority company body or person to the Corporation of electricity in bulk upon and subject to such terms and conditions as may be agreed upon but nothing in this section shall authorise any party to any such contract to lay any mains or electric lines or to interfere with any street outside the limits of such party for the supply of electricity. A.D. 1930.

(b) Any contract entered into under the provisions of this section shall be submitted to the Electricity Commissioners for their approval.

(2) (a) If the local authority of any district adjoining the electricity limits are authorised to transfer their undertaking such local authority may with the approval of the Electricity Commissioners transfer their electricity undertaking to the Corporation and the Corporation may accept such transfer and may raise money for the purpose of the undertaking and transfer under the provisions of the Electricity (Supply) Acts 1882 to 1928 in like manner as if such district were part of the electricity limits.

(b) Any capital money received by any local authority in respect of any transfer under this subsection shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

40.—(1) Nothing in the section of this Act of which the marginal note is "Contracts for supply of electricity in bulk" shall prejudice or affect any right or interest of any officer or servant of any authorised undertakers under the provisions of section 15 of the Electricity (Supply) Act 1926 and the enactments and schedule therein referred to and the said provisions shall extend and apply to any officer or servant of any authorised undertakers affected by the acquisition of or closing (permanent or temporary) or alteration in the working or use of a generating station or by the acquisition of a main transmission line or any part thereof under or in consequence of any contract or agreement entered into by the Corporation under the provisions of this Act with any local authority company body or person and the provisions of the said section 15 and

Compensation for deprivation of employment.

A.D. 1930. the enactments and schedule therein referred to shall
— apply and have effect as if such closing or acquisition
were a closing or acquisition under or in consequence of
the said Act of 1926 and such alteration were a restriction
imposed by or under a scheme under that Act.

(2) For the purposes of this section the expression
“authorised undertakers” means any local authority
company body or person authorised by Act of Parliament
or by Provisional Order or Special or other Order to
produce or supply electricity.

As to
maximum
power
which
may be
demanded.

41.—(1) The maximum electrical power with which
any consumer shall be entitled to be supplied by the
Corporation shall not include any supply of electricity
taken on extraordinary occasions or as a stand-by
supply unless such consumer shall pay to the Corporation
such minimum annual sum as will give them a reasonable
return on the capital expenditure and will cover other
standing charges incurred by the Corporation in order
to meet the possible maximum demand for those premises
the sum so to be paid to be determined in default of
agreement by arbitration in the manner provided by
section 28 (Arbitration) of the Electric Lighting Act
1882.

(2) The provisions of this section shall not operate
to deprive any consumer of electricity supplied by
the Corporation under the terms of any agreement
existing at the passing of this Act of any right to which
he would be entitled but for the said provisions.

Power to
cut off
supplies
where
charges &c.
not wholly
paid.

42. The powers of the Corporation under section 21
of the Electric Lighting Act 1882 of cutting off supplies
of electricity and cutting or disconnecting electric lines
or works and of recovering the expenses incurred in
such cutting off shall be exerciseable in any case in
which any part of any charge or sum due to the
Corporation for electricity supplied by them or in
respect of any apparatus or fitting let on hire by the
Corporation or supplied by them on hire purchase
terms and which the Corporation are under obligation
to maintain remains unpaid after the expiration of
such period from the date of demand thereof as the
Corporation may from time to time determine.

43. Where a separate transformer is provided at the expense of the Corporation for the purpose of affording a supply of electricity to any consumer the Corporation may use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided.

A.D. 1930.

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As to use
of trans-
formers.

44. The Corporation may levy and recover such charges as they think fit for taking the reading of any electricity meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than those of the periodical readings Provided that such charges shall not exceed the sum of one shilling for each reading.

Charges for
special
readings of
electricity
meters.

45. In any case in which the Corporation lawfully cut off a supply of electricity by reason of any act omission or default of a consumer or any other person they may recover from the person to whom the supply was theretofore furnished or from any other person on account of whose act omission or default such supply was cut off the reasonable expenses incurred by them in such cutting off in like manner as charges for electricity are recoverable by the Corporation.

Power to
recover cost
of cutting
off supplies.

46.—(1) The Corporation may make byelaws for the purpose of preventing fire or danger to persons in any building or premises supplied or proposed to be supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply.

Byelaws
as to
apparatus
and fittings.

(2) The provisions of section 6 (Regulations to be inserted in licences &c.) of the Electric Lighting Act 1882 shall apply to any byelaws made under this section.

(3) No byelaw made under this section shall apply to or in respect of any building or premises (not being a dwelling-house or used for human habitation) belonging to and used by any railway company primarily for railway purposes.

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Period of
error in
defective
meters.

47.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Notice to
discontinue
supply of
electricity.

48.—(1) A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall be sufficient if it be in writing signed by or on behalf of the consumer and left at or sent by post to the offices of the electricity undertaking of the Corporation.

(2) Notice of the effect of this section shall be endorsed upon every demand note for charges for electricity.

Further
powers as
to entry
upon
premises.

49.—(1) The powers conferred by section 24 of the Electric Lighting Act 1882 of entering premises for the purposes mentioned in that section shall extend to enable the Corporation to enter any premises to which electricity is or has been supplied by them (whether for the time being occupied or not) and in or upon which they have reason to believe that there is or has been any contravention of any of the Acts or Orders relating to the electricity undertaking or of any byelaw or regulation made thereunder and to inspect such premises and any electric lines wires fuses casings switches fittings lamps lampholders or other apparatus therein and in any case in which any such contravention is found to exist or to have existed to cut off and disconnect the supply of electricity to the premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 as extended by this section are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he

cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage. A.D. 1930.

(3) Any person who shall refuse or neglect to admit any officer appointed by the Corporation to any premises which he is entitled to enter in pursuance of the said section 24 as extended by this section or shall hinder any such officer from entering any such premises or from exercising the powers contained in either of the said sections shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by any railway company for the purpose of their railway and forming part of any station or goods depot.

50.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act and not otherwise provided for shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses. Receipts and expenses.

(2) Any moneys received by the Corporation under this Part of this Act shall be deemed to be moneys received in respect of the electricity undertaking and shall be applicable accordingly.

PART IV.

OMNIBUSES.

51. The Corporation may run through omnibuses along any route on which the Corporation are for the time being authorised to run omnibuses and such omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by such omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such omnibus. Through omnibuses. Provided that

A.D. 1930. — during the running of such through omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of omnibuses.

Power to
reserve
omnibuses
for special
purposes.

52.—(1) Notwithstanding anything contained in this or any other Act or Order to the contrary the Corporation may on any occasion run and reserve omnibuses on any route on which the Corporation are for the time being authorised to run omnibuses for any special purpose which the Corporation may consider necessary or desirable provided that such special omnibuses shall be distinguished from other omnibuses in such manner as the Corporation may direct and that during the running of such special omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of omnibuses.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) Any byelaws and regulations made by the Corporation under this section shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(4) The restrictions contained in this or any other Act or Order of the Corporation as to fares rates or charges for passengers shall not extend to any special omnibuses run for such special services as aforesaid and in respect thereof the Corporation may demand and take such fares rates or charges as they shall think fit.

PART V.

FINANCE.

Power to
borrow.

53.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith

or applied thereby shall respectively be “the prescribed period”) mentioned in the third column thereof (namely):—

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1	2	3
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and easements and rights in connection with lands and water (including any moneys paid or payable by the Corporation under the section of this Act of which the marginal note is “Payment of compensation”).	£ 1,500	Sixty years from the date or dates of borrowing.
(b) The construction of the waterworks sanctioned and confirmed by this Act.	3,300	Thirty years from the date or dates of borrowing.
(c) The costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Electricity Commissioners borrow such further money as may be necessary for any of the purposes of Part III (Electricity) of this Act and may with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of Part IV (Omnibuses) of this Act and may with the consent of the Minister borrow such further money as may from time to time be necessary for any purposes of the water undertaking or of the gas undertaking of the Corporation or any of the purposes of this Act other than the purposes of Part III or Part IV thereof.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the commissioners or Minister with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

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Sinking
fund.

54.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund

or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1930.
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(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking

A.D. 1930. fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

(12) All moneys which at the date of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

As to
mortgage
of revenues
of Cor-
poration.

55. Any reference in any mortgage or charge granted by the Corporation to the revenue of any undertaking of the Corporation shall be deemed to be a reference to the revenues of the Corporation.

Consoli-
dated loans
fund.

56.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty-one the Corporation may (if they think fit) establish a fund to be called "the consolidated loans fund" to which shall be paid as and when they are received—

(a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

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- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and
- (c) in the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of any statutory borrowing power of the Corporation and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the

A.D. 1930. investments thereof shall not except with the consent
— of the Minister be used or applied otherwise than as
provided in this subsection.

(3) Subject to any priority existing at the passing
of this Act all stock of and loans to the Corporation and
the dividends and interest thereon shall be charged
indifferently on all the revenues of the Corporation and
shall rank equally one with the other without any priority
whatsoever.

(4) Save as in this section expressly provided all
the obligations of the Corporation to the holders of stock
or other securities of the Corporation shall continue in
force.

(5) The powers conferred by this section shall not
be put into operation by the Corporation except in
accordance with a scheme to be approved by the
Minister and such scheme may make provision for any
matters incidental to the establishment and administration
of the consolidated loans fund.

Investment
of and
payments
into sinking
fund.

57.—(1) When under the provisions of this Act or of
any other Act of Parliament or of any Order confirmed
by or having the effect of an Act of Parliament whether
passed confirmed or made before or after the passing of
this Act the Corporation are empowered or required to
form a sinking fund redemption fund or loans fund the
following provisions shall have effect with respect to the
appropriate yearly sums and to the accumulations
thereof (if any) required to be set apart for or paid into
such sinking fund redemption fund or loans fund for
the purpose of providing for the repayment of moneys
borrowed by the Corporation (that is to say):—

The accumulations of the said yearly sums shall be
paid and provided out of the general rate fund
and general rate and any interest dividends and
proceeds arising from the investment of the
said yearly sums and the accumulations thereof
(including such annual sums and accumulations
as have been provided prior to the passing of
this Act) shall be paid into and form part of the
general rate fund.

(2) Section 69 (Power to invest all sinking funds in
statutory securities) of the Act of 1918 is hereby repealed.

58. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals depreciation contingent insurance or other similar fund including any capital sum vested in the Corporation in its corporate capacity and not as a trustee for the purposes of an endowment (in this section referred to as "the lending fund") subject to the following conditions:—

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—
Use of
moneys
forming
part of
sinking
and other
funds.

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable:

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power:

- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised

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A.D. 1930.

in exercise of the power and the provisions of any enactment as to reborrowing of sums raised under the statutory borrowing power shall apply accordingly.

Amend-
ment of
section 66
of Act of
1918.

59. Subsection (3) of section 66 (Power to use one form of mortgage for all purposes) of the Act of 1918 shall be read and have effect as if the following words were inserted at the end thereof :—

“and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.”

Evidence
of transfer
or trans-
mission of
securities.

60. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk or registrar of stock of the Corporation of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Receipt in
case of
persons not
sui juris.

61. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Interest on
mortgages
held
jointly.

62. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Protection
of lender
from
inquiry.

63. A person lending money to the Corporation shall not be bound to inquire as to the observance by the Corporation of any provisions of any Act relating to the

Corporation or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. A.D. 1930.

64.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power. Return to Minister with respect to repayment of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision (other than the foregoing provisions of this section) of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

A.D. 1930.

—
Applica-
tion of
revenue
and
payment
of expenses
of under-
takings.

65.—(1) Subject to the provisions of subsection (2) of this section and notwithstanding anything contained in any previous enactment all money received by the Corporation on account of the revenue of any undertaking for the time being of the Corporation from which revenue is derived shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of any such undertaking shall be paid out of that fund.

(2) Nothing contained in this section—

(a) shall be deemed to authorise the Corporation to apply or dispose of the surplus revenue of the electricity undertaking otherwise than in accordance with the provisions of section 43 of and the fifth schedule to the Electricity (Supply) Act 1926;

(b) shall prejudice or affect the operation of subsections (2) and (3) of section 73 (Reserve fund and application of revenue) of the Act of 1918.

(3) All interest received in any year from the investment of the electricity reserve fund shall be carried to and form part of the revenue for that year of the general rate fund but the electricity reserve fund shall in that year be increased by a sum equal to the amount of such interest if and so far as the amount of the fund for the time being is less than the prescribed maximum.

(4) The Corporation may (if they think fit) apply money received by them on account of the revenue of any of the undertakings (other than the electricity undertaking) referred to in subsection (1) of this section in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertakings respectively.

(5) The following enactments are hereby repealed:—

The Lancaster Corporation Act 1880—

Section 102 (Current expenses of gas undertaking);

Section 103 (Application of gas revenue);

Section 104 (Application of water revenue);

Section 105 (Application of market revenue);

Section 106 (Separate accounts).

The Act of 1900—

A.D. 1930.

Section 42 (Application of revenue of tramway undertaking).

The Act of 1918—

Subsections (1) and (4) of section 73 (Reserve fund and application of revenue).

66.—(1) As from the first day of April nineteen hundred and thirty-one the Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation referred to in the section of this Act of which the marginal note is "Application of revenue and payment of expenses of undertakings" (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking including the income from any reserve fund authorised in connection with such undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say) :—

Separate
accounts
to be kept.

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

A.D. 1930.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

(4) Whenever in any financial year ending after the thirty-first day of March nineteen hundred and thirty-three the separate heading or division of the accounts in relation to the gas undertaking of the Corporation shall show that the revenue of that undertaking exceeds the amount expended or set aside in connection with that undertaking in respect of the several purposes mentioned in subsection (1) of this section by an amount which exceeds one and a half per centum of the outstanding debt of the Corporation in respect of the gas undertaking then the charges of the Corporation for the supply of gas to be made and charged in the next succeeding year shall be reduced in such manner as the Corporation think fit to an extent as nearly as may be equivalent to the amount of such excess. Provided that if owing to an increase in the estimated amount to be expended or set aside in the said next succeeding year or to a reduction in the estimated revenue of that year the amount of such excess or any part thereof will be required in order that the revenue may not be less than the amount to be expended or set aside the reduction in charges may be such only as will reduce the revenue by the amount of the balance of such excess.

Reserve
funds.

67.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the following undertakings of the Corporation (namely):—

- (a) the tramway undertaking;
- (b) the omnibus undertaking;
- (c) the gas undertaking;
- (d) the water undertaking;
- (e) the market and slaughter-house undertaking;

by setting aside such an amount as they may from time to time think reasonable (but not exceeding in the case of the water undertaking in any year ending on the thirty-first day of March two per centum upon the amount

of the aggregate capital expenditure of the Corporation upon that undertaking up to the thirtieth day of September of that year) and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding in the case of the tramway undertaking a sum equal to one-fifth and in the case of each of the other undertakings a sum equal to one-tenth of the aggregate capital for the time being expended by the Corporation upon the undertaking. A.D. 1930.

(2) Any reserve fund which has been formed for the purposes of any of the said undertakings and which is in existence at the commencement of this Act shall be deemed to have been formed under this section.

(3) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

PART VI.

MISCELLANEOUS.

68.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with Further powers for acquisition of land.

A.D. 1930. — the consent of the Minister may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund and general rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

(a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister; or

(b) in such other manner as may be approved by the Minister.

Gifts and
bequests.

69.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the borough and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money raised from the general rate they may subject to any condition or restriction attaching to such power expend money so raised in the execution of such works in relation to the subject-matter of the gift.

(2) This section shall not extend to property relating to affairs of the church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act. A.D. 1930.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the treasurer and shall be made up and audited as part of the general accounts of the Corporation.

70. The Corporation may with the consent of the owner of any building within the electricity limits and also within the limits in which the Corporation are for the time being authorised to supply gas attach to that building such brackets wires and apparatus as may be required or expedient for the lighting of streets : Attach-
ment of
brackets &c.
to buildings.

Provided that—

- (a) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid ;
- (b) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under proviso (a) ;

A.D. 1930.

(c) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building;

(d) No brackets wires and attachments shall be attached to any bridge or other work of any railway company without the previous consent in writing of that company.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

As to
recovery of
sums due
for fittings.

71. If the Corporation commence proceedings for the summary recovery of a sum due for the supply of gas water or electricity any other sum due or payable to the Corporation in respect of the sale or hire of any apparatus or fittings supplied by them for or in connection with the consumption or use of gas water or electricity or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily provided the amount due or payable in respect thereof does not exceed twenty pounds.

As to
recovery
of general
rate.

72. Notwithstanding anything contained in section 2 of the Poor Rate Assessment and Collection Act 1869 there may be recovered at one time from the occupier of any rateable hereditament to whom that section applies such portion of the general rate as would be payable on the day on which a complaint of non-payment is made if the rate had been made payable by equal quarterly payments extending over the period for which the rate is made.

Service of
summons
on mem-
bers of
Council.

73. Notwithstanding anything contained in the Second Schedule to the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

Several
sums in one
summons.

74. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in

respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. A.D. 1930. —

75. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

76. The following provisions of the Act of 1900 and the Act of 1918 shall extend and apply to and for the purposes of this Act as if the same were with all necessary modifications re-enacted in this Act (namely):— Application of provisions of previous enactments.

The Act of 1900—

Section 109 (Inquiries by Local Government Board);

Section 124 (General provision as to byelaws);

Section 128 (Penalties to be paid over to the accountant).

The Act of 1918—

Section 59 (Mode of raising money);

Section 60 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 61 (Mode of payment off of money borrowed);

Section 63 (Appointment of receiver);

Section 65 (Application of money borrowed);

Section 71 (Corporation not to regard trusts);

Section 74 (Expenses of execution of Act);

Section 90 (Application of section 265 of Public Health Act 1875);

Section 91 (Recovery of fines and expenses);

Section 92 (Recovery of demands in county court);

Section 93 (Informations by whom to be laid);

Section 95 (Powers of Act cumulative).

Provided that in the application of section 109 of the Act of 1900 that section shall be read and have effect as if the words "five guineas" were substituted therein for the words "three guineas."

A.D. 1930.

Accounts
to be
furnished to
Minister of
Transport.

77. The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their tramway undertaking.

Crown
rights.

78. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of
Act.

79. All the costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1930.

PART I.

RIPARIAN OWNERS (DAMAS GILL).

Joseph Barnett Bibby.
William Marsland Pye.
David Johnston.
William France.
Jane Isabella Baines.
Thomas France.
Mary Elizabeth Ann Procter.
George Smith.
John Taylor. }
Thomas M. Taylor. } Joint owners.
George Thomas Pye.
William Pye.
Joseph Winder Gardner.
Thomas Chippendale.
Joseph Peat.
Isaac Bateson Kellett.
Thomas Archer.

PART II.

THE WYRE RIPARIAN OWNERS.

Albert William Wilson.
Arthur Ralph Fish.
Charles Gibson and Muriel May Haskard
(Trustees of the late Captain Charles Henry Garnett.)
James Lever Rushton.
John Edward Bracken.
John Ainsworth.
Hugh Phipps Hornby.
Hugh Leycester Hornby.
Richard Jenkinson.
Peter Yates.
Thomas Clarke Butler Cole.
Walter Cross.

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